

Court No. - 21

Case :- WRIT - C No. - 38788 of 2014

Petitioner :- Mohammad Samim @ Rangoli

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Bed Kant Mishra

Counsel for Respondent :- C.S.C.,Dr. S.K. Yadav

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Vivek Kumar Birla,J.

Heard learned counsel for the petitioner and Sri S.K. Yadav for the respondent Electricity Department. There appears to be some allegation of theft against the petitioner and an F.I.R. has also been lodged against him.

By means of the present writ petition, the petitioner has prayed for deciding his application regarding reconnection and restoration of the electricity connection with a load of LMV-6 in place of LMV-2. In the the aforesaid process the assessment of the electricity charges has also to be done.

We find that the grievance of the petitioner can be redressed by the competent authority under Section 126 of the Electricity Act, 2003 read with Clause 6.8 of the Electricity Supply Code, 2005.

Accordingly without going into the merits of the claim of the petitioner, we hereby direct the competent authority respondent no. 2 to decide the application of the petitioner preferably within a period of two months from the date of production of a certified copy of this order before him.

With the aforesaid observations, the writ petition is disposed of.

Order Date :- 30.7.2014

Anand Sri./-